

Court No. - 35

Case :- WRIT - C No. - 59584 of 2009

Petitioner :- Sunder Lal Chaubey

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Amit Kumar Dixit

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

Heard Shri Amit Kumar Dixit, learned counsel for the petitioner. Learned standing counsel appears for respondent nos. 1 and 4. Shri Rajesh Tripathi appears for respondent nos. 2 and 3.

In a surprise inspection dated 3.1.2008, the petitioner, his brother Shri Rameshwar Chaubey and one Shri Bisula were found unauthorisedly drawing electricity of 1 KV load by putting an unauthorised cut on the L.T. line.

A provisional assessment was made and sent to the petitioner, on which he filed his objections on 1.2.2008. The Executive Engineer decided his objections on 31.3.2008 and found that instead of defending himself, he has made allegations against the inspecting party. Consequently a citation dated 3.7.2009 has been issued to recover Rs. 53, 187/- and other dues in accordance with the calculations of which the method in a theft case is provided in the U.P. Electricity (Supply) Code 2005.

Learned counsel for petitioner states that his brother Rameshwar Chaube had filed a Writ Petition No. 35098/2008, which was disposed of on 22.7.2008 with directions to decide his representation and that the recovery was stayed for six weeks. It appears that Shri Rameshwar Chaube did not disclose to the Court about filing of the objections and the decision taken on their representation.

Now since the petitioner's representation has been decided by the Executive Engineer, he has remedies of filing an appeal under Section 127 of the Electricity Act, 2003. Learned counsel for electricity department has supplied a copy of the documents including the appellate order to the counsel for petitioner today in Court.

Having regard to the facts and circumstances and the old age of the petitioner, we direct that if the petitioner files an appeal within 15 days from today, the same shall be decided on merits very expeditiously.

The writ petition is **disposed of**.

Order Date :- 9.11.2009

RKP